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No. 11 - Maria

Del Carmen Serrano v. Palisades Restaurant Group Inc., et al.

Defendant

Palisades Restaurant Group Inc.'s Motion for Summary Judgment

Defendant Palisades Restaurant Group Inc. moves for summary judgment of this action brought by Plaintiff Maria Del Carmen Serrano. In the alternative, Defendant moves for summary adjudication of each cause of action.[1] Both Plaintiff and Co-Defendant Jacqueline Montalva ("Montalva") filed an opposition to the motion. Plaintiff also filed a joinder to Montalva's opposition.

Evidentiary

Objections

Plaintiff makes 8 objections to Defendant's evidence. Objections nos. 6-8 are sustained. The remaining objections are overruled.

Montalva makes 5 objections to Defendant's evidence. Objections nos. 1-2 are sustained. The remaining objections are overruled.

Request

for Continuance

As an initial matter, the Court notes that Plaintiff requests in her opposition a 60-day continuance under Code of Civil Procedure section

437c(h) to obtain deposition testimony from witness Yolanda Garcia Pinzon. The applicable statute provides: "If it appears from the affidavits submitted in opposition to a motion for summary judgment or summary adjudication, or both, that facts essential to justify opposition may exist but cannot, for reasons stated, be presented, the court shall deny the motion, order a continuance to permit affidavits to be obtained or discovery to be had, or make any other order as may be just." (CCP § 437c(h).)

The Court declines to grant a continuance. The parties already stipulated to a prior 60-day continuance on May 11, 2026, for this same purpose. Though Plaintiff expresses that she has had difficulty obtaining the desired deposition testimony—Pinzon failed to appear for her deposition—Plaintiff has not moved to compel this deposition. In addition, it is not apparent to the Court that this deposition testimony is essential for Plaintiff's opposition. The request for a continuance is denied.

Legal

Standard for Summary Judgment

Summary judgment should be granted where no triable issues of fact exist and the moving party is entitled to judgment as a matter of law. (CCP § 437c(c); *Villa v. McFerren* (1995) 35 Cal.App.4th 733, 741.) Courts use a three-step analysis: "(1) identify the issues framed by the pleadings; (2) determine whether the moving party has negated the opponent's claims; and (3) determine whether the opposition has demonstrated the existence of a triable, material factual issue." (*Hinesley v. Oakshade Town Center* (2005) 135 Cal.App.4th 289, 294.)

Factual

Background

This case concerns a verbal and physical altercation that occurred between a customer (Plaintiff) and an employee (Montalva) at a Carl's Jr. restaurant. In September 2022, Plaintiff and her husband, David Martinez, accessed the drive-thru window at the restaurant. Montalva, the shift leader at the time, took their order. During this interaction, Martinez tried to use a coupon for the order, and a verbal confrontation arose. Martinez subsequently exited the drive-thru and parked their car. Plaintiff entered the restaurant and insulted Montalva. In response, Montalva followed Plaintiff out of the store and grabbed Plaintiff's hair. A physical

altercation ensued outside of the restaurant. Later, the police were contacted, and Montalva and Plaintiff were each cited for battery. Montalva's employment was terminated that same day.

Propriety
of the Court Ruling on the Motion

Defendant noticed this motion seeking summary judgment or adjudication "on Plaintiff's Complaint." (Def. Notice, at p. 1.) The relief sought includes adjudication of a cause of action for assault and battery and Plaintiff's lack of entitlement to punitive damages. While those items were included in Plaintiff's complaint, filed on September 3, 2024, Plaintiff filed an amended complaint on March 3, 2025 that did not include either a cause of action for assault and battery or a request for punitive damages. The amended complaint includes only two causes of action, for negligence and negligent hiring and retention.

Defendant
thus filed its motion seeking adjudication on a pleading that has been superseded and has no effect.

" 'It is well established that an amendatory pleading supersedes the original one, which ceases to perform any function as a pleading.' " [Citations.] Thus, an amended complaint supersedes all prior complaints. [Citations.] The amended complaint furnishes the sole basis for the cause of action, and the original complaint ceases to have any effect either as a pleading or as a basis for judgment. [Citation.]

Because there
is but one complaint in a civil action [citation], the filing of an amended complaint moots a motion directed to a prior complaint. [Citation.] Thus, once an amended complaint is filed, it is error to grant summary adjudication on a cause of action contained in a previous complaint. [Citation.]

(State
Compensation Ins. Fund v. Superior Court (2010) 184 Cal.App.4th 1124, 1130-1131; see also S.C. v. Doe 1 (2025) 115 Cal.App.5th 365, 384 (" 'It is well settled that the pleadings set the boundaries of the issues to be resolved at summary judgment.' [Citation.] In addition, '[i]t is well established that an amendatory pleading supersedes the original one, which

ceases to perform any function as a pleading. [Citations.]' [Citation.] Because there is but one complaint in a civil action [citation], the filing of an amended complaint moots a motion directed to a prior complaint. [Citation.]")

There is, though, a recent decision that concluded that ruling on a summary judgment motion on a superseded complaint where the same causes of action are asserted in both versions could be considered harmless error. In *Harding v. Lifetime Financial, Inc.* (2025) 109 Cal.App.5th 753, the plaintiff filed a motion for leave to amend his complaint just before the trial court heard defendant's motion for summary judgment. The trial court granted leave to amend, and then granted the motion for summary judgment, which had been noticed with respect to the original complaint. The court was thus faced with a situation similar to that presented here, where the defendant sought summary judgment on a complaint that was no longer at issue.

On appeal, the appellate court noted that "the factual narrative and legal theories embodied in the first amended complaint were extensively briefed in conjunction with Defendants' summary judgment motion on the original complaint." (109 Cal.App.5th at 761.) The same is true here, where the facts supporting the two causes of action in the amended complaint are nearly identical to those asserted in the original complaint. All parties had ample opportunity to brief those issues in connection with the pending motion. In *Harding*, the court of appeal found that "the amended pleading does not materially change the issues at play, and the theory alleged in it was thoroughly briefed in the summary judgment proceedings. [¶] Given how this case unfolded, we cannot see how the outcome would have been any different had the trial court denied the summary judgment motion and forced Defendants to file a new motion challenging the amended complaint. Thus, any procedural error was not prejudicial" (Ibid. at 762.)

In the interests of judicial efficiency, and finding neither party that opposed the motion asserted any prejudice, the Court will consider the motion for summary adjudication on the causes of action for negligence and negligent hiring as applying to the two causes of action in the first amended complaint.

Negligence

To state a claim for negligence, Plaintiff must allege (1) "the existence of a legal duty of care," (2) "breach of that duty," and (3)

“proximate cause resulting in an injury.” (McIntyre v. Colonies-Pacific, LLC (2014) 228 Cal.App.4th 664, 671.)

Defendant argues that it cannot be held vicariously liable for negligence because Montalva’s improper conduct fell outside the scope of her employment. “The rule of respondeat superior is familiar and simply stated: an employer is vicariously liable for the torts of its employees committed within the scope of the employment.” (Lisa M. v. Henry Mayo Newhall Memorial Hospital (1995) 12 Cal.4th 291, 296.) The key issue is whether the employee’s conduct was “within the scope” of the employment or agency. “[A]n intentional tort gives rise to respondeat superior liability only if it was engendered by the employment.” (Id., at p. 298.)

Defendant tries to meet its initial burden in showing that it is not vicariously liable for Montalva’s conduct because there was no required “causal nexus” between her conduct and her work-related duties. Defendant points to Montalva’s discovery responses, in which she attests that Plaintiff cursed at her multiple times in Spanish in the restaurant, and told her she “wasn’t worth anything” and that her job “wasn’t even a real job.” (Def. Compendium, Ex. 5, Resp. to SPROG No. 1, at p. 4.) Plaintiff also told her to “get a husband” and called her a failure and a racist. (Ibid.) Montalva further attests that during the dispute she “felt so humiliated and overwhelmed, that [she] lost control and followed [Plaintiff] outside, where [she] pulled [Plaintiff] by the hair. [Plaintiff] began hitting [her] in the face.” (Def. Compendium, Ex. 7, Resp. to SPROG No. 1, at p. 5.) This evidence suggests that the verbal and physical dispute that ensued was of a personal nature, and was not engendered by Montalva’s employment at Carl’s Jr.

However, Plaintiff and Montalva raise triable issues of material fact as to whether there is a causal nexus between Montalva’s conduct and her employment-related duties.

For example, the assault began over a dispute about the validity of a store coupon. Montalva provides evidence that she was one of two shift managers on duty at the time of the incident, and no store manager was present. (Karayan Decl., Ex. A, Montalva Depo 32:21-33:1.) As a shift lead, Montalva reports that, after Plaintiff entered the restaurant, she followed her outside for the primary purpose of kicking her out of the premises and locking the doors so she wouldn’t return. (Id., at 58:12-59:18.) Montalva testified that during the physical altercation she did not want to harm Plaintiff, but wanted

her to “shut up” about the coupons and what she thought about her job performance. (Id., at 105:12-20.)

Plaintiff also relies on *Flores v. AutoZone West, Inc.* (2008) 161 Cal.App.4th 373, 377. In *Flores*, a customer went to an AutoZone location to purchase motor oil. While shopping in the store, the customer made a noise to get the employee’s attention; the employee then rebuked the customer for whistling at him instead of saying “excuse me,” and asked the customer if he was too stupid to read the prices on the shelf. (Id., at pp. 377-378.) The customer then told the employee that he shouldn’t have come into work if he did not actually want to work. (Id., at p. 378.) After this comment, the employee struck the customer in the head with a metal pipe. (Ibid.) Reviewing the evidence on summary judgment, the trial court found that the employee’s conduct was outside the scope of his employment as a matter of law and, therefore, the employer could not be held vicariously liable. (Ibid.) On appeal from the trial court’s entry of summary judgment in the employer’s favor, the employer argued that the employee’s spark of anger was only ignited after he had completed his work-related task of showing the customer where the price of oil was displayed, and thus, the tortious conduct was not engendered by his employment. (Id., at p. 381.)

The appellate court disagreed and reversed, reasoning in part:

In our view, the anger generated during the interaction between Flores and Gomez cannot be so tidily compartmentalized—at least not as a matter of law. While it may be true that Gomez did not develop his malicious ‘spark’ until the moment Flores made his last comment, a jury could certainly infer from his prior comments that his anger had been ‘sparked’ at an earlier point. ‘Ordinarily, the determination whether an employee has acted within the scope of employment presents a question of fact; it becomes a question of law, however, when “the facts are undisputed and no conflicting inferences are possible.” ’ (Mary M. v. City of Los Angeles (1991) 54 Cal.3d 202, 213, 285 Cal.Rptr. 99, 814 P.2d 1341, *italics added*.) Here, even if the ‘facts’ could be characterized as undisputed, the possible inferences to be drawn from those facts cannot.

(Ibid.)

Here, the Court finds that Plaintiff has sufficiently raised a triable issue of material fact as to whether the dispute arose from Montalva's work-related duties. Plaintiff provides evidence that the verbal altercation grew out of a dispute about the use of a store coupon, that Plaintiff insulted Montalva's job performance while Montalva was at work, and that Montalva followed Plaintiff outside the store for the primary purpose of making sure she left the premises in her role as shift lead. Given the evidence, the Court cannot determine, as a matter of law, that Montalva's tortious conduct fell outside the scope of her employment. Triable issues of material fact preclude summary adjudication of this cause of action.

Negligent

Hiring, Retention, Training, and Supervision

"Negligent hiring/retention is a theory of direct liability—not vicarious liability. In a negligent hiring/retention cause of action, the neglect alleged is not that of the employee. The neglect pleaded is that of the employer itself." (J.W. v. Watchtower Bible and Tract Society of New York, Inc. (2018) 29 Cal.App.5th 1142, 1163.) "Negligence liability will be imposed on an employer if it 'knew or should have known that hiring the employee created a particular risk or hazard and that particular harm materializes.' " (Phillips v. TLC Plumbing, Inc. (2009) 172 Cal.App.4th 1133, 1139.)

Defendant provides evidence showing that it did not know, and could not have known, that Montalva would engage in violent behavior toward customers. In support, Defendant submits a declaration from Patricia Ramirez, a district manager who oversaw "employee training, operations, and compliance with company policies" at Montalva's store location. (Ramirez Decl., ¶ 3.) Ramirez testifies that all employees, including Montalva, undergo a comprehensive training program when they are hired that emphasizes courteous customer service and de-escalation techniques. (Id., ¶¶ 4-6.) She also attests that Montalva worked without incident through her employment and was not subject to any disciplinary actions. (Id., ¶¶ 9-10.) Further, there were no prior complaints that Montalva engaged in aggressive behavior or physical altercations with customers. (Id., ¶ 11.) Therefore, Defendant had no reason to know that Montalva's behavior "created a particular risk or hazard" that later materialized. (See Phillips, *supra*, 172 Cal.App.4th at p. 1139.) This is sufficient to meet Defendant's burden.

Plaintiff and Montalva fail to raise a triable issue of material fact. While Plaintiff provides evidence of four disciplinary write-ups in June and July 2022, the write-ups themselves only report two separate attendance issues, one report for Montalva's failing to punch in for a meal break, and one report for Montalva erroneously discounting an order for a customer. (Jackson Decl., Ex. 3.) These reports are not only unauthenticated hearsay, but they do not show prior events of poor customer service, aggression, or verbal/physical disputes with others. Instead, they recount minor attendance and policy issues. Therefore, even if this evidence had been admissible, it would not create a triable issue of material fact as to whether Defendant should have known Montalva would engage in aggressive conduct.

Plaintiff also states that Yolanda Pinzon, Montalva's fellow co-worker, reported Montalva's "history of being disrespectful" to the police on the scene after the incident occurred, and further requested anonymity from police because she feared retaliation. (Pl. Opp., at p. 6.) However, Plaintiff does not identify any admissible evidence to support these arguments. Instead, Plaintiff cites counsel's declaration, in which attorney Howlett S. Jackson Jr. attests that he was present at Deputy Santacruz's deposition. (Jackson Jr. Decl., ¶ 5.) He states, "Deputy Santacruz further testified that Ms. Pinzon originally requested anonymity from law enforcement specifically because she was in fear of retaliation from Defendant Montalva." (Ibid.) Santacruz's deposition testimony itself was not submitted with the opposition brief. Jackson's account thus constitutes double or triple hearsay and cannot be considered by the Court.

Lastly, Montalva argues that she could not remember receiving training regarding de-escalation policies, and alleges she was undertrained. (See Karayan Decl., Ex. A, Montalva Depo at 38:14-39:15; 113:12-115:12.) However, Montalva's lack of recollection of receiving certain training and her subjective beliefs about the quality of her training fail to create a triable issue of material fact as to whether Defendant should have known Montalva would engage in violent conduct. Nor does her lack of recollection impeach or undermine Ramirez's testimony that such training was provided to Montalva. Defendant is thus entitled to summary adjudication of this cause of action.

Disposition

Defendant Palisades Restaurant Group
Inc.'s motion for summary judgment is denied. The Court grants

summary adjudication for Defendant on Plaintiff's second cause of action for negligent hiring, retention, training, and supervision, and denies summary adjudication for Defendant on Plaintiff's first cause of action for negligence.

[1] Defendant's motion specifies that it seeks summary adjudication of the second cause of action for assault and battery, and on the issue of punitive damages, even though neither is included in the operative first amended complaint. Therefore, the Court will disregard Defendant's arguments regarding the assault claim and punitive damages.